

administration (*f*). "For what," said Lord Thurlow, "is the executor to do? Must the money lie dead in his hands, or must he put it out on fresh securities? On the original securities he had the testator's confidence for his sanction, but on any new securities it will be at his own peril" (*g*). But the trustee should ascertain that there is no reason to suspect the goodness of the security (*h*); and if it be not adequate, it is the duty of the trustee to insist on its being paid, though by the terms of the settlement every investment or change of investment is to be with the *consent* of the tenant for life who refuses, for nothing will justify conduct that puts the trust fund in danger (*i*).

7. **How money to be received by trustees.**—When [*292] the property is reduced into possession by actual *payment, [and the circumstances of the case are such as render it impracticable or highly inconvenient for both trustees to be present at the payment of the money (*a*), while both must join in signing the receipt, it is conceived that the money may be *paid* for the time to one without responsibility on the part of the other. In a recent case, however (*b*), Kay, J. expressed the opinion that it would be a breach of trust on the part of a trustee to allow his co-trustee to *receive* the trust money. But the early authorities on the point do not seem to have been considered, and it is conceived that the rule which was previously established (*c*), that a trustee joining in a receipt merely for the sake of con-

(*f*) *Orr v. Newton*, 2 Cox, 274; and see *Howe v. Earl of Dartmouth*, 7 Ves. 150.

(*g*) *Orr v. Newton*, 2 Cox, 276.

(*h*) See *Ames v. Parkinson*, 7 Beav. 384.

(*i*) *Harrison v. Thexton*, 4 Jur. N. S. 550.

[*a*] If money be laid down on a table in the presence of all the trustees, that is a payment to all of them, and if one of them be commissioned by the others to take it to the bank, that is an act subsequent to the receipt of the money with which the person paying the money is not concerned; *per Kay, J.* *Re Flower and*

Metropolitan Board of Works, 27 Ch. D. 592, 599.]

[*b*] *Re Flower and Metropolitan Board of Works*, 27 Ch. D. 592.]

[*c*] See *ante*, p. 264; and the cases there cited note (*b*). It must however be borne in mind that the rule allowing a trustee to sign a receipt for the sake of conformity without actually receiving the trust-money was founded on *necessity*, and that as at the present day, through increased means of communication and locomotion and the facilities of passing money through banks, trustees can in most cases at very slight expense avoid the risk of putting the